

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BLAKE MCCLENDON,

Petitioner

VS.

MICHELLE MCCLENDON,

Respondent

) Case Number: FDI-20-793695

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL - CIVIL (MC-051)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On for hearing is Petitioner Blake McClendon's attorney Benjamin Kuhm's Motion to be Relieved as Counsel filed 5/20/2026.
- 2) Mr. Kuhm states that an irreconcilable breakdown in the attorney-client relationship has occurred and Petitioner has stopped communicating with Mr. Kuhm's office.
- 3) According to the Proofs of Service filed 5/26/2026, Mr. Kuhm's Motion to be Relieved as Counsel and supporting papers were mailed to Petitioner at 3660 Ross Road Palo Alto, CA 94303 and emailed to Petitioner at blake.legal@protonmail.com.
- 4) Mr. Kuhm states that his motion was served at Petitioner's last known address, but he has not been able to confirm the address is current or to locate a more current address, despite mailing the papers to Petitioner, calling Petitioner's last known telephone number, and contacting Petitioner's mother.

1 **B. Findings and Order**

- 2 1) The Court finds that service of Mr. Kuhm's motion to be relieved as counsel satisfies the service
- 3 requirements set forth in California Rules of Court, rule 3.1362(d)(1)(B).
- 4 2) The Court hereby grants Mr. Kuhm's motion to be relieved as counsel for Petitioner effective
- 5 7/23/2026.
- 6 3) The Court will prepare the Findings and Order After Hearing as well as the Order Granting
- 7 Attorney's Motion to be Relieved as Counsel.
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